

25STCV19806 25STCV19806

County: los-angeles

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Case Number: 25STCV19806 Hearing Date: July 15, 2026 Dept: 309

Superior Court of California

County of Los Angeles

DEPARTMENT

17

TENTATIVE RULING

JAIME NUNEZ

vs.

FCA US, LLC, et al.

Case

No.: 25STCV19806

Hearing Date: July 15, 2026

Defendants'

demurrer is SUSTAINED, WITHOUT LEAVE TO AMEND, as to the sixth cause of action.

Defendants' motion to strike is GRANTED.

On 6/30/2025,

Plaintiff Jaime Nunez (Plaintiff) initiated this action. On 3/3/2026, Plaintiff

filed a first amended complaint (FAC) against FCA US, LLC and Stockton Dodge

Chrysler Jeep Ram (collectively, Defendants) alleging violations of the

Song-Beverly Warranty Act.

On

5/4/2026, Defendants demurred to Plaintiff's sixth cause of action for fraudulent inducement.

Discussion

Defendants

argue that Plaintiff has failed to allege sufficient facts to state a claim for fraudulent inducement and that the claim is barred by the economic loss rule and independent tort principle

As

for the contention that Plaintiff's claim for concealment is insufficiently pled, the Court disagrees.

However, the

Court agrees that Plaintiff's claim is barred by the economic loss doctrine, as Plaintiff seeks purely economic damages allegedly sustained from the purchase of the Subject Vehicle. In other words, Plaintiff alleges she would not have purchased the vehicle. (FAC ¶ 32.)

The

California Supreme Court's recent decision in *Rattagan v. Uber Techs., Inc.* (2024) 17 Cal.5th 1, 553 P.3d 1213 clarifies that fraudulent concealment claims are permissible only where the concealed information exposes plaintiffs to risks or harms beyond the reasonable contemplation of the contractual relationship. (Id. at 13, 31.) For example, the *Rattagan* plaintiff alleged reputational and personal harm, including arrest and public vilification, resulting from Uber's intentional concealment during their contractual relationship—harms that extended far beyond economic loss tied to the contract. By contrast, Plaintiff here alleges no such independent harm. Plaintiff's allegations relate solely to contractual grievances about vehicle performance and warranty obligations.

The

California Supreme Court's recent dismissals of *Dhital v. Nissan North America, Inc.* and *Kia America, Inc. v. Superior Court (Kia)* on December 18, 2024 further reinforce the application of the ELD to bar claims

like Plaintiff's. In Dhital, the plaintiffs alleged fraudulent concealment based on the manufacturer's pre-sale knowledge of vehicle defects obtained through consumer complaints, warranty data and other sources. Similarly, Kia involved allegations of presale concealment where plaintiffs claimed the automaker failed to disclose known defects in its vehicles. The dismissals of these cases suggest that the California Supreme Court did not find unresolved or novel legal issues warranting further review, particularly in light of its recent decision in Rattagan, which clarified the application of the ELD to fraudulent concealment claims. Together, these dismissals reinforce Rattagan as the paramount authority governing the economic loss doctrine.

Based on the foregoing, Defendants' demurrer is sustained, without leave to amend, as to the sixth cause of action.

Motion to Strike

Defendants argue that Plaintiff cannot support a prayer for punitive damages.

The Court agrees.

As set forth above, the Court sustained Defendants' demurrer, without leave to amend, as to the fraud cause of action. Thus, Plaintiff has not alleged specific facts which could show malice, oppression, or fraud.

Based on the foregoing, Defendants' motion to strike is granted.

It is so ordered.

Dated: July
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must send an email to the court at by 4 p.m. the day prior as directed by the instructions provided on the court website at www.lacourt.org. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative.

If all parties to a motion submit, the court will adopt this tentative as the final order. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.